

Chhotey Lal v. State of U.P. and Others

Allahabad High Court · Division Bench · 7 February 2013 · WRIT - C No. 68002 of 2012 · **Writ disposed; petitioner directed to lodge Clause 6.5 complaint before the Executive Engineer, with restoration of supply on deposit of the entire dues or the first instalment if instalments are allowed.**

HEADNOTE

A billing complaint under Clause 6.5 of the U.P. Electricity Supply Code, 2005 must be lodged before the Executive Engineer. Where the consumer had complained to the Chief Engineer against two bills and a disconnection notice, the High Court did not decide the bills on merits and disposed of the writ by directing a Clause 6.5 complaint before the Executive Engineer, restoring supply if the entire dues (or the first instalment, if instalments are permitted) are deposited pending that complaint.

FACTUAL SUMMARY

The petitioner challenged two electricity bills and a disconnection notice and sought permission to deposit the billed amount in monthly instalments. He had already made a complaint seeking correction of those bills before the Chief Engineer. Counsel for the distribution licensee (respondents 2 to 4) appeared. The matter had been adjourned on 17 January 2013 to enable the licensee to obtain instructions, and was heard on 7 February 2013.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing complaint must be lodged before the Executive Engineer

HOLDING

Under para 6.5 of the U.P. Electricity Supply Code, 2005 a complaint against electricity bills is to be lodged before the Executive Engineer, not the Chief Engineer. The writ challenging the bills and disconnection notice is disposed of by directing the petitioner to submit a Clause 6.5 complaint before the Executive Engineer (respondent no. 3). Pending disposal of that complaint, supply shall be restored if the petitioner deposits the entire dues; if the Executive Engineer permits payment in instalments, supply shall be restored on payment of the first instalment. ¶ 3-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE IMPUGNED BILLS, DISCONNECTION NOTICE, AND REQUEST FOR INSTALMENTS

Left to the Executive Engineer on a Clause 6.5 complaint ¶ 3-4